

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 10, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Allen moved to approve Consent Agenda items, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on May 28, 2013. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on June 4, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Upon inquiry, Mayor Kaysen advised a voucher payable to AM Signal Inc. (\$7,665.80 for a solar powered school zone flashing beacon) is a cooperative effort and shared expense with the school district. Upon inquiry regarding a voucher payable to Labor Ready Center, Inc. (\$7,292.13) relative to amounts paid for temporary laborers for the Transfer Station, Jim Elias, Public Works Director, provided information on the number of individuals involved in the billing; hours worked; tasks assigned, and reasons for and benefits of utilizing temporary laborers through the agency. Upon further inquiry, Mr. Elias stated the individuals are not permanent or seasonal City employees and receive no benefits. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for a restaurant liquor license application filed with the City Clerk's Office for Anong Larsen and Brett Larsen d/b/a Anong's Thai Cuisine, 620 Central Avenue, Cheyenne, Wyoming. Upon inquiry, Carol Intlekofer, City Clerk, confirmed the application is for a new restaurant liquor license at the site. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

Mayor Kaysen opened a public hearing to receive comments and input regarding the intent of the City of Cheyenne to submit an application to the Wyoming Business Council's Business Ready Community, Downtown Development Grant Program, for funding for the Capital Basin Flood Control Project (Trunkline Interceptor). Cindy Schneider, Grants Manager, advised the grant is to help with funding to divert flood waters away from the downtown and west edge areas and will set the stage for further economic development. She stated the total amount of the project is \$4,200,000.00 and a grant application for mineral royalty funds has also been submitted, noting that grant, if approved, as well as 6th Penny funds earmarked for the project can go toward the City's match and other grants may also be available. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

Mayor Kaysen opened a public hearing for comments and input on the proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2014. There being no comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

ORDINANCE - Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Cook voting "no". (#3975)

ORDINANCE - Amending the City of Cheyenne's Sanitation Fee Schedule. Maurine Bader, Wyoming Liberty Group, spoke in opposition to the proposed fee increases, commenting on accountability to taxpayers, costs to citizens and the need to research operational efficiencies. Bill Henderson suggested designating a fund to reserve revenues for future allocation due to unknown factors that could affect the budget, such as firefighter arbitration and results of the Employee Investment Study (EIS), and requested consideration of keeping the current landfill dumping quantity of up to 2,000 lbs. that City residents can submit in the fee schedule. Victor Ciccone expressed concerns with increasing rates and the effect on those with fixed incomes, and questioned the need for installing GPS (global positioning system) in sanitation trucks. Jim Elias, Director of Public Works, explained components of the new waste management software, which includes use of the GPS, and advised the system will provide for pick-up route efficiencies and that research reflects users of these types of systems have experienced cost savings. In response to comments, Mayor Kaysen clarified that use of sanitation revenues to cover other City operations has been a practice for decades. Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Ms. Broyles raised a point of clarification questioning if members did not want to support any increases but did want to support other portions of the schedule, could the question be divided. Mayor Kaysen reviewed the procedure to amend the ordinance. Broyles moved to amend by striking any sanitation fee increase but keeping the seven paragraphs noted at the end of the ordinance in place, seconded by Mr. Allen. Mr. Elias clarified the seven paragraphs were contained in a staff cover memorandum and not as part of the ordinance, which includes the attached fee schedule, and encouraged consideration of keeping the 12 notes outlined in the fee schedule. Ms. Broyles revised her motion to change the reference to the seven paragraphs to instead include Notes 1 through 12 as contained in the proposed schedule, with concurrence by Mr. Allen as second to the motion. Mr. Henderson commented on GPS costs over time, referencing the general finance Rule of 72, and suggested review of full life cycle costs. Point

of clarification was raised by Mr. Shanor pertaining to wording of the motion to amend and, upon inquiry, Carol Intlekofer, City Clerk, stated her interpretation of the revised motion on the floor was to strike any fee increases but keep Notes 1 through 12. Discussion included the following topics: Notes contained at the end of the proposed fee schedule, specifically Note 3.; continuing to allow City residents to dump up to 2,000 lbs. at the landfill without a fee; customer service concerns; sanitation pickup routes and procedures; verification that an amendment to the ordinance, pursuant to action taken at the May 28, 2013 Council meeting to include a \$12.00 per hour minimum wage for certain full-time City employees, was still part of the pending ordinance, and confirmation that if the amendment on the floor was approved it would in essence remove the intent of Section 1. of the ordinance. Upon inquiry during discussion, Vicki Nemecek, Assistant Director of Public Works, explained the paragraphs outlined in the staff memo for areas proposed to be included in the notes section of the fee schedule, and reviewed proposed new areas contained in the fee schedule and notes. Mr. Elias provided information on Note 3.; sanitation routes; customer services that are provided and costs/personnel time involved in certain services, and, upon inquiry, noted benefits of implementing the new GPS in vehicles. During comments on the GPS, Dr. Rinne raised a point of order that discussion was not germane to the motion on the floor as funding for the GPS is included with the budget ordinance, not the sanitation fee ordinance. Following verification of the motion on the floor, motion to amend failed. Voting "yes" -- Ms. Broyles, Mr. Luna and Mr. Shanor. Voting "no" -- Mr. Allen, Mr. Brown, Mr. Cook, Dr. Rinne, Mr. Valdez, Ms. Williams and Mayor Kaysen. Ms. Broyles moved to amend by striking Section 3. of the ordinance, which was intended, by previous amendment made at the May 28, 2013 Council meeting, to bring certain employees up to a minimum salary amount of \$12.00/hour, seconded by Mr. Allen. Comment followed that it may be proposed that the topic might be addressed differently than including it in the pending ordinance. Motion to amend carried. Voting "yes" -- all members of the governing body with the exception of Mr. Cook voting "no". Discussion followed on the Landfill Dumping Fees portion of the fee schedule relative to the per ton fee with Mr. Elias providing information on the types of waste being submitted and fees based on weight. Dr. Rinne moved to amend by striking the proposed increase to the cost per ton from the Landfill Dumping Fee section, which would keep the current provision in place, seconded by Mr. Shanor. Dr. Rinne revised (clarified) his motion to amend to reflect, in the fee schedule, that City residents can dump up to 2,000 lbs. per four month period for free. Mr. Shanor, as second to the initial motion, concurred with the revision. Mr. Ciccone requested clarification of the proposed amendment with regard to the procedure utilized to ascertain the 2,000 lb. limit and questioned how much money the compost facility raises revenue-wise for the City. Mr. Elias advised loads are weighed at the landfill and records are kept and when the same customer comes back with another load, the weights are added to previous weight amounts to track the 2,000 lb. limit, and that compost facility revenue is approximately \$115,000 per year. Motion to amend carried. Voting "yes" -- all members of the governing body. Upon inquiry involving roll-off containers (pursuant to Note 9.) and various bin fees, Mr. Elias reviewed current fees; explained problems involving overweight roll-off containers and the reasons for assessing charges for overweight containers; confirmed that private haulers are allowed to place their containers in the City pursuant to a past change in city code, and provided information on curbside bins. Mr. Brown raised a point of order pertaining to what the question on the floor involved with Mayor Kaysen clarifying the main motion on the floor is to approve the ordinance as amended. Discussion followed on use of sanitation revenue to off-set other City services; other City services that don't involve revenue generation; diversifying the City's funding stream to help fund operations; transparency involving operational costs; limited revenue sources available to the City and

effect on the general fund, including staffing and current level of services, if sanitation fees are not used to cover costs for other operations and services. Main motion as twice amended failed. Voting “yes” -- Mr. Brown, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Voting “no” -- Mr. Allen, Ms. Broyles, Mr. Cook, Mr. Luna, Mr. Shanor and Ms. Williams.

ORDINANCE - Appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2013, and ending June 30, 2014. Bill Henderson spoke in support of the budget process, noting it can be amended later if needed, and commented that there were potential areas where rates could be increased. Reporting for Committee of the Whole, Dr. Rinne stated there was no recommendation from the Committee. Dr. Rinne moved to approve on third and final reading, seconded by Ms. Broyles. Mr. Shanor moved to amend the budget by directing that \$615,000 in recurring expenditures be cut from the FY2014 proposed budget under the following conditions: 1. That \$615,000 currently proposed in appropriated money for a 2.25% raise to City employees remain intact in its entirety and no other cuts will be made to any part of currently proposed City employee compensation and benefit packages; 2. That the currently proposed recurring revenue estimates and recurring expenditure estimates remain as is and not be altered to accommodate this \$615,000 cut; 3. That nonrecurring funds, specifically the \$1,890,785 million in state special distribution funds and the roughly \$1,748,220 in impact assistance capital investment funds, will not be used to cover this cut in recurring expenditures; and 4. As part of this amendment the Council grants the administration the authority to determine how this \$615,000 cut will be made subject to these conditions. Mr. Henderson spoke in support of the amendment and to keep the amount in reserves. Upon inquiry, Lois Huff, City Treasurer, confirmed the City’s portion of the increase to employee retirement pension cost is included in the \$615,000. Mr. Shanor moved to amend the amendment by striking “and recurring expenditure estimates” contained in Condition No. 2., seconded by Mr. Allen. During comment on addressing salary adjustments for employees, Mr. Brown raised a point of order that comments should pertain to the pending motion to amend the amendment. Motion to amend the amendment carried. Voting “yes” -- all members of the governing body. Discussion followed on proposed employee salary increases; revenue constraints, and concern with Condition No. 4. relative to administrative vs. Council’s responsibility in determining where reductions will be made to meet the \$615,000 cut and effect on staffing levels and reduction of services. Upon inquiry regarding potential legal concerns involving Condition No. 4., Dan White, City Attorney, expressed his belief that the authority granted to the administration in this condition could represent an unconstitutional or unlawful delegation of power by City Council and could be inconsistent with state statutes. Mr. Shanor moved to amend the amendment, seconded by Mr. Allen, as follows: In lieu of paragraph (i.e. condition) 4. of the pending amendment, which is in relation to the administration’s discretion to administer the \$615,000 cut as it deems appropriate, the following will be inserted: To effectuate this \$615,000 cut, the City budget will be cut by 1.125% across the board by each department’s individual budget being decreased by 1.125% in the numbers below: City Council, \$272,592; Mayor, \$2,133,960; City Clerk, \$2,771,029; Public Works, \$11,087,848; Police, \$11,730,919; Fire, \$9,092,141; Parks and Recreation, \$5,630,325; Treasurer, \$594,426; Engineering, \$878,179; Planning Services, \$1,867,005; General Accounts, \$6,385,404, and Support Services \$1,602,551, for a total amended budget of \$54,046,383. Mr. Henderson commented on use of City reserves as an option and proposed salary increases vs. a COLA (Cost of Living Adjustment). Nick Winslow questioned how much money the City will receive due to the increase in state fuel tax effective July 1, 2013 with Ms. Huff advising the projected revenue has been calculated and is included in the proposed budget, noting the revenue will be used for roads and street construction. Discussion followed on concern with legal issues, unknown fire union arbitration

results and use of recurring revenue for proposed salary increases. Upon inquiry, Carol Intlekofer, City Clerk, advised the amendment cannot be further amended at this time as there were already two pending motions to amend on the floor. Motion to amend the amendment failed. Voting “no” -- all members of the governing body. Mr. Shanor moved to amend the amendment, seconded by Mr. Luna, as follows: In lieu of paragraph 4. of the pending amendment which is in relation to the administration’s discretion to administer the \$615,000 cut as it deems appropriate, the following will be inserted: To effectuate this \$615,000 cut, the City budget will be cut by 1.125% across the board by each department’s individual budget being decreased by 1.125% as reflected in the numbers below (re: same listing with dollar amounts as included in the previous motion to amend the amendment) except under Fire strike the amount of \$9,092,141, and insert the Fire Department budget will be cut by 1.125% or only to the extent we don’t violate the collective bargaining agreement, for a total amended budget of \$54,046,383, minus the Fire Department amount. Pursuant to inquiry regarding wording of the motion, Mr. Shanor revised his motion to add at the end of the wording “... for a total amended budget of \$54,046,383, minus the fire department amount and in addition to whatever the Fire Department budget ends up being under these conditions. Mr. Luna, as second to the motion to amend the amendment, concurred with the revised wording of the motion. Ms. Huff questioned verification of the dollar amount that would be listed in the total amount of the budget ordinance if the amendment were approved (i.e. original budget amount of \$9,195,592 or a revised amount of \$9,092,141 reflecting a 1.125% cut, which represents \$103,451). Mr. Shanor stated preferably the amount of \$9,195,592 would be cut by 1.125% but that may not be achievable if it violates the fire collective bargaining agreement, and commented on either budgeting for that amount and having the provision subject to an analysis of the collective bargaining agreement or leaving it open ended that the Fire Department budget will be cut by 1.125% or to the extent that the collective bargaining agreement will allow. Ms. Huff expressed her belief that she needed to include a definite dollar number for the total budget and couldn’t do a narrative budget. Upon inquiry, Mr. White advised of his concerns with the proposed amendment stating the Fire Department currently includes 3 firefighters employed pursuant to federal grant funds under the SAFER program and that, before approving the amendment, it would be helpful to analyze grant requirements to ensure the amendment would not affect the City’s obligations under the grant agreement. He further stated that the topic of who decides whether we are in violation of the collective labor agreement is a concern as the fire union may disagree with a decision and may file a request for arbitration, which would then involve an arbitrator possibly making a budget decision, which could be an unconstitutional delegation of authority. Upon inquiry to Mr. White regarding whether potential liability could exist if one budget is not cut but cuts to other budgets are effected, Mr. White stated the basic idea being presented for an across the board cuts to all departments by 1.125% would probably be legal but there is a concern when the Fire Department is included as it raises other issues that have to be carefully analyzed. Mr. Shanor moved the previous question. Joe Dougherty, Transit Director, stated that from his experience with the City’s budgetary process, the budget has to have a fixed number. Mr. Allen seconded the motion to move the previous question (call for the question to limit debate). Motion carried. Voting “yes” -- all members of the governing body. Pursuant to a point of order raised by Dr. Rinne, Mayor Kaysen clarified the motion just approved was to close debate on the motion to amend the amendment and, for informational purposes, inquired of Ms. Huff whether a COPS federal grant involving funding for the Police Department officers might also affect the proposed cuts. Ms. Huff advised the COPS grant has expired but the City is required to retain 3 police officers funded through the grant through Dec. 31, 2013 and that amount needs to remain in the budget and if the 1.125% cut involving the motion to amend the amendment is approved, the Police Department can not cut funding for those positions. Motion to amend the amendment failed. Voting “no” -- all members of the governing body. Mr.

Shanor moved to amend the amendment as follows: In lieu of paragraph 4. of the pending amendment which is in relation to the administration's discretion to administer the \$615,000 cut as it deems appropriate, the following will be inserted: To effectuate this \$615,000 cut, the City budget will be cut by 1.125% across the board by each department's individual budget being decreased by 1.125%, excluding the Fire Department, as reflected in the numbers below (re: same listing with dollar amounts as included in the previous motion to amend the amendment with the subtraction of the amount listed for Fire) for a total amended budget amount. Pursuant to a request for clarification by Ms. Huff, Mr. Shanor clarified his motion is to leave the Fire Department's initial budget amount of \$9,195,592 as listed in the ordinance and that the total amended budget amount, if the motion is approved, would be \$54,149,835. Mr. Luna seconded the motion to amend the amendment. Comment followed that by amending the budget amount, the effect is that the "numbers" are no longer reconciled. Following a 10 minute recess, Mayor Kaysen reconvened the meeting at 8:34 p.m. Verification was made of the wording of the motion on the floor and comment was offered that support for the amendment not be provided to allow for reconciliation of the amended budget total. Motion to amend the amendment failed. Voting "no" -- all members of the governing body. Mr. Shanor moved to amend the amendment as follows: In lieu of paragraph 4. of the pending amendment which is in relation to the administration's discretion to administer the \$511,549 cut as it deems appropriate, the following will be inserted: To effectuate this \$511,549 cut, the City budget will be cut by 1.125% across the board by each department's individual budget being decreased by 1.125%, excluding the Fire Department, as reflected in the numbers below (re: same listing with dollar amounts as included in the previous motion to amend the amendment with the amount now listed for Fire as \$9,195,592) for a total amended budget amount of \$54,149,835. Mr. Allen seconded the motion. Sara Vasquez, president, Cheyenne Public Employees Association, expressed concerns that the proposed 1.125% budget cuts could result in staff reductions in force (RIF) measures as well as reduced services. Claus Johnson, City employee, reiterated similar concerns expressed by Ms. Vasquez and further commented on past budget constraints resulting in RIFs and early retirement offerings and effect on remaining employees to "do more with less". He stated his opinion that COLAs (Cost of Living Adjustments) and raises are different issues and commented further that the employee-driven EIS (Employee Investment Study) was to assist with hiring and keeping qualified, trained staff to provide services. Mr. Henderson asked whether existing contract services offered any opportunity for amounts to be amended, and if that might be a funding source for the proposed 2.25% COLA increase for employees, and posed possible contractual areas that may be increased or decreased to cover the COLA cost. Mayor Kaysen provided information on the different types of contracts the City has, noting that some may have provisions to renegotiate terms while others do not; advised some contracts involve sales tax funds and grants, and provided information on employee health coverage. Upon inquiry, Ms. Huff advised health care costs to the City is approximately \$6 million a year. During comments offered by James Perrot Howard McNeil Pershing regarding Swan Ranch developers, Mr. Brown raised a point of order that comments were not germane to the motion on the floor with Mayor Kaysen concurring. Ms. Huff commented on discussions she was involved in with department/division heads during the budget preparation process and complimented them on efficiently managing their budgets, and effect of additional budget reductions. She advised the \$615,000 (for employee increases) is already included in the budget, and commented generally on estimated revenue projections contained in the budget, impact assistance funds and dollar amount involved in the previous agenda item that failed relative to sanitation fee increases. Rich Wiederspahn, Human Resources Director, referenced the difficulties employees experienced during and after the 2010 RIFs; requested Council not lose sight of the human side of the issue and look at alternatives, and do whatever can be done to keep employees. Discussion included the following topics: Proposed motion to amend the amendment; unknown effect of fire

arbitration; proposed budget revenue and expenditure estimates; fiscal responsibility; 1% Sales Tax expenditures, and request to receive information from department heads advising of the effect a 1.125% cut would have on their budgets. During comments on 1% Sales Tax expenditures, Mr. Brown raised a point of order that comments were not germane to the motion on the floor as 1% monies aren't in the general fund involving the motion. Mayor Kaysen requested comments on 1% Sales Tax expenditures and grants be held for discussion after the amendments had been dealt with. Pursuant to the request made during discussion, the following Department/Division heads provided information on the effect of a 1.125% cut to their respective budgets: Mr. Dougherty, Transit Director; Chief Brian Kozak, Police Department; Chief Jim Martin, Fire and Rescue Department; Rick Parish, Director of Parks and Recreation; Matt Ashby, Director of Planning Services; Jim Elias, Director of Public Works; Rob Geringer, City Engineer; Ms. Intlekofer, City Clerk; Ms. Huff, City Treasurer; Mr. Wiederspahn, Director of Human Resources, and Mr. White, City Attorney. Also offering comments was Gus Lopez, Director, City-County Health Department. Areas noted that could be affected included: Employee staffing levels, equipment and supplies, reduced services; training; meeting the public's expectations for services, maintenance of grounds, facilities, computer hardware and software, and meeting certain legal requirements. Discussion and comments continued on statutory time frame requirement in which to approve the budget; effect of a 1.125% cut to department budgets; Council's budgetary responsibility; whether the budget was "padded"; staff positions in some departments; proposed income for the Ice and Events Center; concern with ongoing recurring expenses; effect of affordable health care act and federal sequestration; budget re-appropriation availability; fire arbitration, and looking at the big financial picture, long term, from a policy perspective. During discussion, various budget information was provided by Ms. Huff, and Mr. Parish responded to inquiries concerning department part-time staffing levels, revenue generated by the gymnastics program, and Ice and Events Center revenue due to the recent loss of the Cheyenne Warriors contract. Mayor Kaysen advised the budget that was presented is a conservative, lean budget. Motion to amend the amendment failed. Voting "yes" -- Mr. Allen, Mr. Luna, Mr. Shanor and Ms. Williams. Voting "no" -- Mr. Brown, Ms. Broyles, Mr. Cook, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Upon request, Ms. Intlekofer read the pending motion to amend, as amended (i.e. Condition 2.), involving the cutting of \$615,000 in recurring expenditures and the four conditions contained in the motion. Discussion included the numerous amendments presented during the meeting; Council's involvement in providing viable solutions regarding areas to cut, and authority provided in Condition 4. which the City Attorney previously stated could be unconstitutional. Motion to amend failed. Voting "no" -- all members of the governing body. Ms. Broyles moved to amend by raising every full-time employees salary working for the taxpayers in the City of Cheyenne to a minimum salary of at least \$11.53 per hour for FY2014; this raise would bring 36 individuals to a basic minimum for a total compensation of \$56,119.63, which includes workers compensation, social security and retirement; funding for this amendment will be supported from recurring revenues, seconded by Mr. Allen. Upon inquiry by Mr. Dougherty on whether the amendment would apply to permanent part-time employees, Ms. Broyles verified her motion does not include permanent part-time employees but that would be looked at in the future. Discussion followed on the per hour amount proposed in the amendment relative to a 2.25% COLA; bringing employees up to market value; funding source to pay for costs involved with the amendment; waiting for EIS results that may affect salary levels, and written attorney-client advice previously received by Council members from the City Attorney. On behalf of the Council as an entity, Mr. White expressed his concern to the Council with regard to discussion involving his attorney-client privileged communication, stating no individual member of Council has the right to waive the privilege, and requested that any further discussion on this, or any attorney-client advice he provides, cease immediately. Upon inquiry, Ms. Huff confirmed that with a 2.25% COLA the \$11.53/hour rate

would result in \$11.79/hour and provided information regarding some positions involved in the proposed amendment that involve grant funding. She stated that the actual effect of the amendment on the general fund would be about \$48,000. Motion to amend failed. Voting “yes” -- Ms. Broyles and Mr. Luna. Voting “no” -- Mr. Allen, Mr. Brown, Mr. Cook, Dr. Rinne, Mr. Shanor, Mr. Valdez, Ms. Williams and Mayor Kaysen. Following comments, main motion carried. Voting “yes” -- Mr. Brown, Ms. Broyles, Mr. Cook, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Voting “no” -- Mr. Allen, Mr. Luna, Mr. Shanor and Ms. Williams. (#3976)

Following a brief recess, Mayor Kaysen reconvened the meeting at 10:53 p.m.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-2 Medium Density Residential - Developing District to NR-3 Neighborhood Residential - High Density District for Lot 14, Block 1, Saddle Ridge, Fifth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Countryside Avenue and Medicine Man Trail). Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body with the exception of Ms. Williams voting “no”. (#3977)

ORDINANCE - Amending various Sections of Title 8, Health and Safety, Chapter 8.08, Alarm Systems, of the Cheyenne City Code pertaining to Alarm Devices and Systems, and False Alarms. Charlie Giroux stated his concerns that there was no separation difference between a residential alarm and a business/commercial alarm, and the fee rate associated with a change in alarm systems. Upon inquiry, Chief Brian Kozak, Police Department, advised the ordinance will not go into effect until September 1, 2013 and reviewed plans to educate the community and businesses through distribution of information prior to that time. He stated that officer response to false alarms is the greatest concern which the ordinance will help address, noting that the same resources are expended whether response is to a residence or business. Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Mr. Brown moved to amend Section 8.08.020 A. by reducing the permit amount from \$200.00 to \$100.00, seconded by Mr. Valdez. It was clarified this would be a one time permit fee for new permittees, not an annual fee as is currently place, as long as the system is the same, and that current permittees will pay \$25.00 to effect the change. Motion to amend carried. Voting “yes” -- all members of the governing body with the exception of Dr. Rinne voting “no”. Mr. Shanor moved to amend Section 8.08.055 B. by inserting the language “and permit fee amount” between the words “City” and “prior” so the section would read “ ... Each alarm monitoring company and installer shall notify its customers of the requirement to obtain an alarm permit from the City and permit fee amount prior to finalizing any sales or service agreement for an alarm system”. Ms. Broyles seconded the motion. Chief Kozak expressed support for the amendment. Motion to amend carried. Voting “yes” -- all members of the governing body. Upon inquiry concerning Section 8.08.030 C. and Council members’ involvement in comprising the 3 member panel relative to the appeal process involving possible revocation or denial of a permit, Dan White, City Attorney, explained that when drafting the ordinance he reviewed Chapter 5.04 of City Code which relates to the revocation of business licenses and involves a contested case hearing before the full Council. He stated he felt alarm permits do not implicate constitutional guarantees, such as a business license does, and considering a hearing procedure for citizens would be helpful, he determined a “sub-set” of Council members to serve on the panel would be adequate in lieu of the entire governing body. Dr. Rinne moved to amend by striking the second sentence in its entirety in Section 8.08.020 C. 1. b. which reads as follows: “ ... A

permittee may be subject to a fee of one hundred dollars (\$100.00) if any responding police officer is unable to establish contact with the permittee or with emergency contacts listed in the application for the purpose of granting access to the alarm system location or deactivating the alarm.” Motion was seconded by Mr. Allen. Mr. Giroux spoke in favor of the amendment. Chief Kozak advised the purpose of the section is due to the scenario of officers being on the scene, sometimes for hours, trying to contact the responsible person and this is to encourage the permit holder to update their information.

He noted that assessment of the fee is at the discretion of the police chief. Comments followed on communication unavailability at times, particularly involving cellphone contact attempts where lack of cell coverage areas may exist; current wording of the sentence relative to “may be subject to a fee” vs. lack of the word “shall”; responsibility of permittees to provide current contact information; suggestion that a reduced fee of \$50.00 be considered, and effect of remaining wording in the section if the amendment was approved. Motion to amend carried. Voting “yes” -- Mr. Allen, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Voting “no” -- Mr. Brown, Ms. Broyles and Mayor Kaysen. Main motion as amended three times carried. Voting “yes” -- all members of the governing body. (#3978)

ORDINANCE - Granting a Franchise by the City of Cheyenne to Cheyenne Light, Fuel and Power Company, its successors and assigns, the right to furnish, sell and distribute natural gas to the City and to all persons, businesses, and industry within a portion of the City in Cheyenne Light, Fuel and Power Company’s Certificated Territory and the right to acquire, construct, install, locate, maintain, operate and extend into, within and through said City all facilities reasonably necessary to furnish, sell and distribute natural gas within the City and the right to make reasonable use of all streets and other public places and public easements as herein defined as may be necessary; and fixing the terms and conditions thereof. Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Motion carried. Voting “yes” -- all members of the governing body. (#3979)

ORDINANCE - Amending Chapter 5.12, Alcoholic Beverages, Section 5.12.030(A), Application–Fees–Procedures, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code to authorize one (1) additional dispensing room for restaurant liquor licensees upon application to and approval by the Governing Body of the City of Cheyenne pursuant to the provisions of Wyoming Statute §12-4-410(b), as amended, effective July 1, 2013. Mr. Brown reported there was no recommendation from Finance Committee on the item. Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Upon inquiry, Carol Intlekofer, City Clerk, provided information on the purpose of the ordinance, which is to amend City Code to “mirror” state statute changes approved by the state legislative body at its most recent session, and explained the statutory change provides the opportunity for current restaurant liquor licensees to request one additional dispensing room in the same building and under the same requirements and restrictions as the initial liquor license. She noted a 2/3rds fee of the initial license is required and, upon further inquiry, stated to date she had not received any inquiries or requests pursuant to the statute change. Comments followed on municipalities’ ability to be more restrictive than state statutes, and concern with employees ages 18 to 21 serving alcoholic beverages. Motion failed (due to a tie vote). Voting “yes” -- Mr. Brown, Mr. Luna, Mr. Shanor, Ms. Williams and Mayor Kaysen. Voting “no” -- Mr. Allen, Ms. Broyles, Mr. Cook, Dr. Rinne and Mr. Valdez.

ORDINANCE - Amending Ordinance No. 3951 defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne. Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Mr. Brown moved to postpone for two weeks (to June

24, 2013), seconded by Ms. Broyles. It was noted the reason for the Finance Committee's recommendation to postpone was due to correlation of the proposed ordinance with the budget and since the budget ordinance passed earlier in the meeting, the purpose for postponement no longer existed. Motion to postpone failed. Voting "yes" -- Mr. Luna. Voting "no" -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Dr. Rinne, Mr. Shanor, Mr. Valdez, Ms. Williams and Mayor Kaysen. Main motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Amending Ordinance No. 3952 defining the terms and conditions of employment for sworn officers of the City of Cheyenne Police Department. Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Mr. Brown moved to postpone for two weeks (to June 24, 2013), seconded by Mr. Valdez. Similar to the previous agenda item, it was noted that the purpose for postponement no longer existed due to passage of the budget ordinance. Motion to postpone failed. Voting "no" -- all members of the governing body. Main motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Amending various sections within Chapter 5.68, Body Art Establishments and Operations, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code to provide for a Body Art Special Event Business License and requirements for participating body artists and guest body artists -- referred to Finance Committee (sponsors -- Mr. Brown, Mr. Valdez).

ORDINANCE - Amending Chapter 5.08, Business License Fees, Section 5.08.250, Body Art Establishments and Operations -- Body Artists, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code to implement a license fee for Body Art Special Events -- referred to Finance Committee (sponsors -- Mr. Brown, Mr. Valdez).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from LR-1 Low-Density Residential-Established to MUR Mixed-Use Residential Emphasis for the south ½ of Lots 8 and 9, Block 3, Yellowstone Addition, Cheyenne, Wyoming (located east of and adjacent to Yellowstone Road, between Dell Range Boulevard and Carroll Avenue) -- referred to Public Services Committee (sponsor - Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to HI Heavy Industrial for Lot 3, Block 2, Campstool Addition, Second Filing, Cheyenne, Wyoming (located north of and adjacent to Hutchins Drive, west of Campstool Road) -- referred to Public Services Committee (sponsor - Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to MUB Mixed Use Business Emphasis for Lots 1 through 4, Block 1, Cooley Subdivision, Cheyenne, Laramie County, Wyoming (located at the southwest corner of the intersection of Bluegrass Circle and Edgewater Avenue) -- referred to Public Services Committee (sponsor - Mr. Allen).

[CA] RESOLUTION - Approving Outside User Water/Sewer Services by User's Agreement with

Cronimet Holdings, Inc., Lot 2, Block 1, Swan Ranch Rail Park, Second Filing, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5496)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Saddle Ridge, Fifth Filing, a replat of all of Block 7, and a portion of Countryside Avenue, Saddle Ridge, Cheyenne, Wyoming (located at the northwest corner of the intersection of Wilderness and Medicine Man Trails). Motion (per Consent Agenda) carried. (#5497)

RESOLUTION - Adopting the 8th Avenue Corridor Plan. James Perrot Windsor Howard McNeil Pershing commented in reference to ownership and the Swan Ranch and his opposition to the resolution with Mayor Kaysen advising ownership/Swan Ranch comments had no bearing on the agenda item. Mr. Allen moved to adopt, seconded by Mr. Cook. Following brief comments, motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Shanor voting "no". (#5498)

[CA] RESOLUTION - Authorizing the submission of a Business Ready Community, Downtown Development Grant Application to the Wyoming Business Council on behalf of the Governing Body of the City of Cheyenne for the Downtown Flood Control Project; Trunkline Interceptor -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Memorandum of Understanding between the City of Cheyenne, Engineering Department, and Laramie County School District No. 1 for the construction of storm sewer improvements on East Pershing Boulevard (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$130,000.00). (#6012)

[CA] Professional Services Agreement between the City of Cheyenne and RubinBrown LLP, Denver, Colorado, to Audit the Financial Statements of the City of Cheyenne, Wyoming. Motion (per Consent Agenda) carried (amount not to exceed \$171,000.00 / 3 year agreement). (6013)

[CA] Software Subscription Agreement between the City of Cheyenne, Special Projects/Parking Division, and T-2 Systems, Inc., Indianapolis, Indiana, for a parking enforcement software system with support maintenance -- referred to Finance Committee.

[CA] Contract between the Wyoming Department of Family Services and the City of Cheyenne, Office of Youth Alternatives regarding the provision of Diversion Services -- referred to Finance Committee.

[CA] Amendment Number One Contract No. 5867 between the City of Cheyenne, Office of Youth Alternatives, and Wyoming Department of Family Services regarding the provision of Prevention Services -- referred to Finance Committee.

[CA] Consideration of Bid #M-13-13 for a contract for the Fiscal Year 2013 City Overlay Project between the City of Cheyenne, 1% Construction Division, and Simon Contractors, Inc., Cheyenne, Wyoming (2011- 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$2,443,546.35). (#6014)

[CA] Consideration of Bid #M-14-13 for a contract for the Fiscal Year 2013 concrete for Street &

Alley Overlay Part “A” Project between the City of Cheyenne, 1% Construction Division, and Simon Contractors, Inc., Cheyenne, Wyoming (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$697,744.50). (#6015)

[CA] Consideration of Bid #R-28-13 for furnishing four new 2013 vehicles for the Parks & Recreation Department (2 for Parks Division, and 2 for Recreation Division) (2011- 2014 1% Sales Tax). Mr. Brown moved to accept the bid from Spradley Barr Motors, Cheyenne, in an amount not to exceed \$108,587.00, seconded by Mr. Valdez. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Luna and Ms. Williams voting “no”.

[CA] Consideration of Bid #R-26-13 for furnishing one new 2013 regenerative air sweeper and chassis for the City’s Street & Alley Division (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Floyd’s Truck Center, Cheyenne; amount not to exceed \$222,885.00)

[CA] Consideration of Bid #R-27-13 for furnishing one new dual solid drum articulating vibratory roller for the City’s Street & Alley Division (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Wyoming Equipment of Cheyenne; amount not to exceed \$103,867.00).

Announcement was made of the Re-Appointments of Danny Glick, Jeff Lamm, Rick Robinson and Gay VanHorn to the Laramie County Community Juvenile Services Joint Powers Board; Dick O’Gara and John Sundahl to the Downtown Development Authority Board, and Mary Bienz, Dean Meyer, Scott Thomas and Robin Zimer to the Public Transit Advisory Board, to be confirmed June 24, 2013.

Announcement was made of the Appointments of Christopher Humphrey to the Laramie County Community Juvenile Services Joint Powers Board, and Pat McGee and Hanz Seitz to the Downtown Development Authority Board, to be confirmed June 24, 2013.

Announcement was made of a Public Hearing to be held June 24, 2013, at 6:00 p.m., in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, to receive public comment, pursuant to W.S. § 15-1-112(b), regarding a proposed trade of certain City-owned land generally described as Lots 30 and 31, Block 1, Eastridge Addition, to 19th & Converse, LLC, a Colorado limited liability company, in exchange for 9,504 square feet of land, being a portion of Lots 1 and 2, Block 1, Ruth Addition, to be acquired by the City for right-of-way purposes in connection with the reconstruction of the Pershing Boulevard/Converse Avenue/19th Street intersections.

Announcement was made that two Calcuttas, benefitting Cheyenne area charities, will be held as follows: Saturday, July 27, 2013 beginning at 5:30 p.m. in the Calcutta tent located in front of the Old West Museum, 4601 North Carey Avenue, Frontier Park, in conjunction with the Championship Bull Riding event, and Sunday, July 21, 2013 beginning at 5:30 p.m. in the Calcutta tent located in front of the Old West Museum, 4601 North Carey Avenue, Frontier Park, Cheyenne, Wyoming, in conjunction with the 2013 Cheyenne Frontier Days celebration (10% of proceeds to bona fide charities).

Under other business, County Commissioner Buck Holmes was recognized as being present at the meeting; appreciation was expressed to City employees attending the long meeting, and

comment was made concerning the Brewfest event and Tuesday Farmers Markets relocating their events from the Depot to other sites.

There being no further business to come before the governing body, the meeting was officially adjourned at 11:37 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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